

CEASE AND DESIST LETTER

Michael Brennan, Esq.
General Counsel
Forge Software Inc.
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Date: January 28, 2026

Ms. Claire Dubois
VP of Engineering
Apex Consulting Group LLC
1501 K Street NW, Suite 600
Washington, DC 20005

Re: Software License Violation — Unauthorized Deployment of ForgeDB Enterprise

Dear Ms. Dubois,

This letter constitutes a formal demand that you and/or your organization immediately **cease and desist** all unlawful activity relating to ForgeDB Enterprise Edition, a proprietary database management system licensed to Apex Consulting Group under License Agreement No. FSI-2024-03892, dated March 15, 2024. This letter is sent on behalf of our client, the party whose rights have been violated, and is intended to put you on formal notice of these violations.

FACTUAL BACKGROUND

Under the license agreement, Apex Consulting was authorized to deploy ForgeDB Enterprise on a maximum of 10 production servers. Our telemetry and audit systems have detected 47 active production installations as of January 2026, representing a 370% overage. Additionally, the license expressly prohibits sublicensing, yet our investigation indicates that at least three of Apex's clients — Meridian Financial, TrueNorth Logistics, and Cascade Health Systems — are running ForgeDB instances provisioned and managed by Apex, constituting unauthorized sublicensing.

LEGAL BASIS

The conduct described above constitutes a violation of 17 U.S.C. § 501 (copyright infringement), the Computer Fraud and Abuse Act (18 U.S.C. § 1030), and breach of contract under Virginia law. These laws provide for significant civil remedies, including injunctive relief, monetary damages, and recovery of attorneys' fees and costs.

DEMANDS

In light of the foregoing, we hereby demand that you take the following actions on or before **February 28, 2026**:

1. Immediately decommission all ForgeDB Enterprise installations exceeding the 10-server license limit.
2. Terminate all sublicensed deployments at Meridian Financial, TrueNorth Logistics, Cascade Health Systems, and any other third-party environments.
3. Pay retroactive licensing fees of \$564,000 covering the 37 excess deployments at the standard per-server rate of \$1,200/month for the 12.7 months of unauthorized use.
4. Submit to an independent software audit within 30 days to verify compliance, at Apex's expense.
5. Execute an amended license agreement reflecting actual usage going forward.

CONSEQUENCES OF NON-COMPLIANCE

Forge Software reserves the right to terminate the license agreement immediately and pursue all legal remedies, including statutory damages, injunctive relief, and recovery of attorneys' fees, if Apex Consulting does not cure these violations by the deadline.

Nothing in this letter shall be construed as a waiver of any rights or remedies available under applicable law, all of which are expressly reserved. This letter is written without prejudice to any and all rights, remedies, and claims, whether known or unknown, that may exist now or in the future.

Please direct your written response to the undersigned at the address above no later than **February 28, 2026**. Sincerely govern yourself accordingly.

Sincerely,

Michael Brennan, Esq.
General Counsel
Forge Software Inc.
mbrennan@forgesoftware.com